

M/s Hind Agro Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · Writ-C No. 42562 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5 with 40-day stay of coercive action.**

HEADNOTE

A writ against permanent disconnection of a 2800 kVA industrial connection and recovery of about ₹4.41 crore was not entertained. The grievance was a dispute as to correctness of the bill. The Division Bench held that Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies the statutory remedy, directed that an application filed within two weeks be decided by a speaking order within 30 days after hearing, and stayed coercive action for 40 days or until that decision, whichever is earlier.

FACTUAL SUMMARY

M/s Hind Agro Pvt. Ltd. petitioned the Allahabad High Court against an order dated 9 December 2019 of the Executive Engineer, Electricity Distribution Division-III, Dakshinanchal Vidyut Vitran Nigam Ltd., Aligarh, permanently disconnecting connection No. 447001727 of 2800 kVA and raising recovery of ₹4,41,37,054. Counsel for the petitioner and the electricity department were heard. The Court treated the grievance as a dispute over correctness of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy

HOLDING

A writ petition raising a dispute as to the correctness of an electricity bill, including one that also challenges permanent disconnection and a recovery demand, is not to be entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy; the consumer may approach the appropriate authority under that clause, and the writ court may, without deciding the bill, time the application and stay coercive action pending that decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court declined to entertain the writ because Clause 6.5 of the Supply Code is the statutory remedy for a dispute as to correctness of the bill. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The challenge to the bill, disconnection and recovery was treated as a billing objection to be taken to the appropriate authority under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL, VALIDITY OF THE PERMANENT DISCONNECTION, AND RECOVERABILITY OF ₹4,41,37,054

Left to the Clause 6.5 authority to decide by a speaking order after hearing; the High Court did not examine the merits. ¶ 1